

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Thomas Juliano	Team: Squad #06	CCRB Case #: 202006522	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Tuesday, 09/15/2020 7:30 AM	Location of Incident: Northeast corner East 120th Street and 2nd Avenue	18 Mo. SOL 5/4/2022	Precinct: 25
Date/Time CV Reported Tue, 09/15/2020 7:26 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 09/28/2020 12:28 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Christopher Heredia	01339	938656	WARRSEC
2. DT3 Felix Garcia	04045	906303	WARRSEC

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Brian Farrell	01056	925260	WARRSEC

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Felix Garcia	Force: Detective Felix Garcia used physical force against § 87(2)(b)	A . Closed - Pending Litigation
B . DT3 Christopher Heredia	Force: Detective Christopher Heredia tased § 87(2)(b)	B . Closed - Pending Litigation

Case Summary

On September 15, 2020, Sgt. Brian Farrell of the Warrant Section called IAB to report a use of force on § 87(2)(b). On September 28, 2020, the complaint was received at the CCRB under log #2020-22001.

Between September 29, 2020 and October 22, 2020, seven calls were placed to § 87(2)(b)'s attorney, § 87(2)(b), and voicemails were left. On October 23, 2020, § 87(2)(b) called the CCRB. § 87(2)(b) stated that § 87(2)(b) is incarcerated and that he did not want § 87(2)(b) to provide a statement while his criminal case remained active. He requested that this complaint be closed pending litigation. § 87(2)(b) agreed to explain to § 87(2)(b) should he wish to reopen his request, he can submit a reopen request following the conclusion of his criminal case. § 87(2)(b) was provided with the CCRB case number and the CCRB's address.

§ 87(2)(g)

it is recommended that this case be **Closed – Pending Litigation.**

Squad: 06

Investigator:	<u>Inv. Thomas Juliano</u>	<u>Inv. Thomas Juliano</u>	<u>10/23/2020</u>
	Signature	Print	Date

Squad Leader:	<u>IM Jessica Peña</u>	<u>IM Jessica Peña</u>	<u>10/26/2020</u>
	Title/Signature	Print	Date